

Markandey Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 January 2021 · Writ-C No. 26514 of 2020 · **Writ disposed with liberty to represent under cl. 7.10(iii); coercive steps stayed pending that proceeding.**

HEADNOTE

A consumer disputing a recovery citation for alleged agricultural/tubewell use, and claiming never to have taken such a connection, is not entitled to a merits decision in writ. The petition is disposed with liberty to move a representation under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005, to be decided by a reasoned speaking order after hearing. Coercive recovery is stayed during that proceeding, but may resume if no representation is filed in time.

FACTUAL SUMMARY

Markandey Singh challenged a recovery citation dated 12 November 2019 issued by the Executive Engineer, PuVVNL, Jamaniya, Ghazipur, alleging tubewell use. He claimed he had never held an agricultural electricity connection, and that a representation dated 19 November 2020 remained pending. He sought certiorari quashing the citation and mandamus to decide the representation. Counsel for the Power Corporation submitted that grievances as to disconnection or bill correction lay before the Consumer Grievance Redressal Forum under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(iii)

consumer-grievance-redressal

HOLDING

Where a consumer disputes a recovery citation alleging agricultural/tubewell use and claims never to have taken such a connection, the writ court will not decide the merits and will dispose the petition with liberty to move a representation under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005, to be considered and decided by a reasoned speaking order after hearing; coercive steps shall not be taken while that proceeding is pending, but if no representation is filed within the time allowed the licensee may recover in accordance with law. ¶ 1

FLAG Court applied cl. 7.10(iii) to a representation before the Executive Engineer, though counsel had invoked the same clause for the CGRF.

PRINCIPLE TAGS

alternate-remedy-clause-7.10 The Court disposed the writ without examining the recovery citation, relegating the petitioner to a cl. 7.10(iii) representation to be decided by a reasoned speaking order, with coercive recovery stayed only while that proceeding was pending. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER EVER HELD AN AGRICULTURAL OR TUBEWELL CONNECTION, AND WHETHER THE RECOVERY CITATION DATED 12.11.2019 WAS VALID

Merits of the citation and the pending representation were left to the Executive Engineer under cl. 7.10(iii). ¶ 1